

Court No. - 1

Case :- WRIT - C No. - 26113 of 2019

Petitioner :- Jugal Kishor

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajesh Kumar Roy Sharma

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri R.K.R Sharma, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the respondent Nos.2, 3 and 4 and perused the record.

The petitioner by means of this petition, invoking the extraordinary jurisdiction of this Court, the petitioner has prayed for direction in the nature of mandamus commanding the respondent nos.2 to 5 to supply the sufficient and proper electricity with accurate voltage to the petitioner in respect of the electricity connection that he has been enjoying and in the alternative to direct the concerned respondent to decide the representation dated 8.7.2019 moved by the petitioner in this regard.

Learned counsel for the petitioner submits that there is continuous voltage problem and, therefore, he had complaint in that regard but all his efforts have gone vain.

From the perusal of records as have come to be annexed along with writ petition , we find that petitioner has already been supplied with estimated cost for the approval of sanction of additional/proper line for supply of electricity with accurate voltage.

Sri Baleshwar Chaturvedi, learned counsel for the Power Corporation submits that the petitioner being aggrieved against the estimated cost, the petitioner ought to have paid the estimated cost and in case the petitioner was aggrieved against such cost being demanded for providing the electricity line, to ensure proper supply, he could have approach the Electricity Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005.

The learned counsel for the petitioner could not dispute the availability of the above forum.

In our considered opinion, the electricity department with the aid and help of it's team of technical experts makes assessment of the cost and the Consumer Grievance Redressal Forum is the best place to agitate such issues and get them resolved. Sub-clause II and III of Clause 7.10 of the U.P. Supply Code, 2005 relevant for the purpose are reproduced hereunder:-

(i) The Licensee shall set up Consumer Grievance Redressal Forum in accordance with the UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulations, 2003, as

amended from time to time. The name/addresses and contact telephone numbers of the forum shall be mentioned in the electricity bill and also displayed in the web site of the licenses/Forum.

(ii) Any consumer aggrieved by any action of the Licensee, in respect of the matters mentioned in clauses 7.7.1 to 7.7.5 or those covered under the said Regulations may file a complaint with the Licensee.

Clause 7.7.1 deals with supply related matters, interruption/failure of power supply, voltage variation while clause 7.7.2 relates with the new connection, disconnections, reconnections and related matters, clause 7.7.3 relates to metering, clause 7.7.4 relates to billing, clause 7.7.5 relates to transfer of ownership and conversion of services.

In our considered opinion, the matter of the petitioner stands covered fully under the provisions contained in Clause 7.7.1 and, therefore, in the light of the above provisions contained in Clause 7.10, the appropriate remedy for the petitioner is to approach the forum and even otherwise in our opinion if a decision is based on any technical report, the same cannot be judicially reviewed without any technical aid and we do not deem it appropriate to ask the parties to lead evidence before this Court to resolve the disputed questions of fact.

In view of the above, the petitioner is permitted to raise objection regarding estimated cost demanded by the respondents/power corporation before the Consumer Grievance Redressal Forum within the period of two weeks from today. We further direct that in the event of such an objection/application being preferred as provided hereinabove, the same shall be disposed of by the forum on merits within a further period of four weeks, of-course, by a reasoned and speaking order.

Thus the present writ petition stands finally disposed of.

(Ajit Kumar, J.)

(Ramesh Sinha, J.)

Order Date :- 8.8.2019
Gaurav